

Justification and Approval (J&A) for Other Than Full and Open Competition

Was a J&A approved for the preceding acquisition where that acquisition required a J&A? ☐ Yes ☒ No

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined at [DAFFARS 5302.101](#)? ☒ Yes ☐ No

Dollar Value of this Acquisition: [REDACTED]

Contracting Activity: AFLCMC/HNIK

Purchase Request (if available) / Local ID Number:

Program / Project (and PE, if applicable): TDC CLS

Program Type (PEO, Enterprise, of Operational): PEO

Authority:

6.302-1 – 10 USC 3204(a)(1), Only One Responsible Source - No Other Supplies or Services Will Satisfy Agency Requirements

Estimated Contract Cost (including options): \$ [REDACTED] J&A Type: ☐ Class ☒ Individual

COORDINATION ([DAFFARS 5306.304\(a\)](#))

Date 07 Jan 2025	Project Lead / Program Mgr / Requiring Activity [REDACTED] AFLCMC/HNIB/ [REDACTED]	Signature [REDACTED]
Date 07 Jan 2025	Contracting Officer [REDACTED] AFLCMC/HNIK/ [REDACTED]	Signature [REDACTED]
Date 14 Jan 2025	Local Legal Reviewer [REDACTED] 66 ABG/JAS / [REDACTED]	Signature [REDACTED]

APPROVAL ([DAFFARS 5306.304\(a\)](#))

Date 25 Feb 2025	Competition Advocate Richard P Halloran AFLCMC/PZC Hanscom-OL [REDACTED]	Signature [REDACTED]
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I. Agency and Contracting Activity.

The contracting organization responsible for this justification and approval is the United States Air Force (USAF) Materiel Command, Air Force Life Cycle Management Center (AFLCMC), Enterprise IT & Cyber Infrastructure Contracting Division (HNIK), 3 Eglin Street, Bldg. 1612, Hanscom AFB MA, 01731-2100. The Contracting Officer is [REDACTED]. The Contract Specialist is [REDACTED]. The Program Manager is [REDACTED].

II. Nature and/or description of the action being approved.

This Justification and Approval (J&A) is for a new bridge contract in accordance with FAR 6.302-1(a)(2)(iii)(B) for AFLCMC Program Executive Office for Cyber and Networks (AFLCMC/HN) Theater Deployable Communications (TDC) Contractor Logistic Support (CLS) Task Order # FA8726-22-F-0014. This action is for the issuance of a Firm Fixed Priced (FFP)/Cost Reimbursement (CR) bridge contract to Atlantic Comtech Corporation Valkyrie Comtech (ACT) that will provide continued mission support services for contractor comprehensive sustainment and support services for the United States Air Force (USAF) TDC equipment to ensure reliable operations for all TDC systems. These services include, but are not limited to, logistical support in equipment sourcing, replacement, inventory, and systems configuration, including technical support to sites requesting TDC assistance and program management.

III. Description of supplies/services required to meet agency needs.

This Bridge to the current CLS contract will provide continued mission support services for Department of the Air Force (DAF) systems and networks including operating the contractor logistic support facility. The predominant contract type for CLS operations are Firm Fixed Price (FFP) with Cost Reimbursement (CR) CLINs for purchasing spares, consumable items, and bench stock items and services supporting break/fix actions and shipping. Not to Exceed (NTE) values for the CR CLINs are established based upon Government plug values.

The Period of Performance (PoP) for this bridge contract is nine (9) months with three (3) one month options, beginning 17 March 2025 to avoid any interruption in service. Nine months is based on the current source selection schedule for the competitive follow-on which is anticipated to award in October 2025 and the required 60 day transition from the incumbent to a new awardee. The option provides scope to provide schedule margin for potential protest reconciliation.

The total estimated value for this action is [REDACTED]

[REDACTED] This action will be funded using FY25 3400 Operations & Management funds.

The following CLINs are anticipated to be utilized:

0001- CLS operations (FFP) [REDACTED]

0101 - CLS operations Option (FFP) [REDACTED]

0201 - CLS operations Option (FFP) [REDACTED]

0301 - CLS operations Option (FFP) [REDACTED]

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0002- Data (NSP)

0102- Data (NSP) Option

0202- Data (NSP) Option

0302- Data (NSP) Option

0003- ODC Repair (Cost Reimbursable) [REDACTED]

0004- ODC Spares (Cost Reimbursable) [REDACTED]

0005- ODC Shipping (Cost Reimbursable) [REDACTED]

0105- ODC Shipping (Cost Reimbursable) Option [REDACTED]

0205- ODC Shipping (Cost Reimbursable) Option [REDACTED]

0305- ODC Shipping (Cost Reimbursable) Option [REDACTED] [REDACTED]

0006- ODC Bench stock (Cost Reimbursable) [REDACTED]

0007- ODC Consumables (Cost Reimbursable) [REDACTED]

0008- ODC Travel (Cost Reimbursable) [REDACTED]

Total Bridge Estimated Value: [REDACTED]

IV. Demonstration that the contractor's unique qualifications or the nature of the acquisition requires use of the authority cited above.

This J&A is in accordance with FAR 6.302-1(a)(2)(iii)(B) unacceptable delays in fulfilling the agency's requirements for authorization to issue a bridge contract for the continuation of TDC CLS services while the follow-on contract is competed and awarded. The Current TDC CLS Task Order (TO) Number FA8726-22-F-0014 was awarded competitively on 22 February 2022 to Atlantic Comtech Corporation Valkyrie Comtech (ACT) through the NETCENTS II Small Business Contract and cannot be extended because the terms of the NETCENTS II IDIQ (FA8732-15-D-0023 P00018) do not allow TOs to extend for more than three (3) years beyond the last day of the ordering period, which was 01 April 2022. The Period of Performance (PoP) end date for the current TDC CLS Program is 16 March 2025 and cannot be extended for additional six (6) months in accordance with FAR 52.217-8 due to terms established in the NETCENTS IDIQ.

The follow-on TDC CLS contract is being competed as a set aside to HubZone Small Business Concerns under FAR Part 15. The solicitation for the follow-on contract was originally scheduled to be released in the 4th Quarter of FY24 with award by the end of 2nd Quarter of FY25. The follow-on contract was delayed due to competing requirement priorities and critical manning vacancies within the TDC program office. Most notably, the program office received an influx of requirements and increase in funding in support of Operational Imperative 5 (OI5), Optimized Resilient Forward Basing. OI5 requirements [REDACTED] were prioritized ahead of CLS activities. [REDACTED]

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[REDACTED] All of these factors have contributed to the delay in the release of the TDC CLS solicitation, leading to the need for a bridge action to continue critical CLS support while the team simultaneously completes the competitive award.

Simultaneously, the team executed actions for [REDACTED] Agile Communication Packages (ACP) and [REDACTED] Fly Away Communication Terminals (FACT), connecting users at Forward Operating Locations to vital DoD IT network capabilities. In addition, these actions supported of Agile Combat Employment and [REDACTED] Deployable Joint Worldwide Intelligence Communications Systems kits and [REDACTED] Commercial Satellite Communications terminals, enhancing IT resiliency in contested environments.

In total, the program office experienced [REDACTED] without additional resources. In addition, the program office has faced significant manning challenges to include vacancies to [REDACTED] billets due to attrition and deployments, coupled with delays in civilian hiring due to the hiring freeze. All of these factors have contributed to the delay in the release of the TDC CLS solicitation, leading to the need for a bridge action to continue critical CLS support while the team simultaneously complete the competitive award.

This proposed bridge contract will continue the work ACT performs on the current contract without interruption until a follow-on TDC CLS Contract is awarded. The work being performed under the current TDC CLS contract is categorized as non-commercial due to the nature of the work and the level of specialization that is needed for Defense Property Accounting System (DPAS) accountability and Item Unique Identification (IUID) requirements. Therefore, this acquisition will be a follow-on contract for the continued provision of specialized services.

The contractor (ACT) performing the current TDC CLS Task Order already has employees with the necessary certifications and experience and has been performing the work to meet the requirements on this contract for the last 3 years. Their experience and employees are necessary to keep the TDC units supported in the months leading up to the award of a new contract.

An interruption in service would leave the USAF's expeditionary communication missions of the USAF without access to replacement parts for failed components as ACT houses and manages all TDC replacement parts and spares within their warehouse and no alternate entity is presently available to provide that service. There are currently [REDACTED] TDC units plus the TDC Lab that are supported by this CLS contract. In addition, beginning in [REDACTED] the team will be fielding kits to [REDACTED].

The lack of support will create vulnerabilities and a lack of mission readiness to provide deployed forces access to the DOD Information Network. The mission readiness is vital to the ability to provide communications to keep command and control of deployed forces to project air power in a theater of operations. This support is crucial to the Air Combat Employment mission concept for the Global Power Competition.

In accordance with FAR 6.302-1(a)(2)(ii)(B), the current contractor, ACT, is the only firm capable of providing the supplies and services described in Section III above without incurring unacceptable delays and interruption in CLS services impacting the TDC mission.

V. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by subpart 5.2 and, if not, which exception under FAR 5.202 applies.

In accordance with FAR Part 5.203(a) a Notice of Contract Action (NOCA) was publicized 10 Jan 2025 to

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inform industry of the upcoming anticipated bridge contract to Atlantic Comtech Corporation Valkyrie. No respondents from industry expressed interest in the bridge effort. The follow-on effort will be a competitive small business HubZone set-aside.

VI. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

Based upon certified cost or pricing data provided in the offeror's proposal, the program office's technical analysis of the offeror's Basis of Estimates, the Contracting Officer expects they will be able to determine that the anticipated cost to the Government will be fair and reasonable.

VII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

An RFI was posted on Sam.gov in April 2024 to identify capable sources for the TDC CLS follow-on contract. [REDACTED] interested Hub Zone Small Businesses responded to the RFI. The PMO's analysis of their responses indicates that they will be capable of fulfilling the TDC CLS requirement. For additional Market Research we have engaged with industry through phone calls to understand more of their experience and capabilities to meet the upcoming requirement. Based on the market research conducted for the TDC CLS follow-on contract, the Government is confident that there are sufficient capable sources available to fulfill the CLS requirement including the requirement under this proposed bridge; however, it has been determined that competing this bridge would not be practical and would put the Government at risk of interruption of CLS services.

VIII. Any other facts supporting the use of Other Than Full and Open Competition.

This J&A will provide authority for a sole source bridge contract for the continuation of TDC CLS services while the follow-on contract is competed and awarded. The bridge performance includes a sixty (60) day transition period for the new awardee to work in tandem with the current contractor to transition the Government Furnished Property (GFP) from the ACT's facility to the new follow-on Contractor's facility. It is in the best interest of the Government to issue this bridge to the incumbent Contractor to continue services without interruption until the new TDC follow-on contract is awarded.

IX. List of any sources that expressed, in writing, an interest in the acquisition.

Following is the list of Small Business Hubzone Contractors showing interest on TDC CLS follow-on acquisition. This proposed bridge is required as a stop gap to ensure continuation of service while the follow-on contract is competed.

[REDACTED]

X. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisitions for the supplies or services required.

The TDC Program and Contracting Office intend to take corrective action to ensure that in the event that a similar situation arises, it is communicated to the Senior Material Leader (SML), to the Chief of Contracting Office, and to the Director of Contracting as soon as the issue is identified in an attempt to reconcile issues that may necessitate requirements for future bridge contracts.

As mentioned in Section VII, market research has revealed that the TDC requirements can be competed.

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The TDC CLS follow-on acquisition will be competed as a Small Business HubZone set aside under FAR Part 15.

XI. Certification by the Contracting Officer.

As evidenced by my signature above, I certify that this justification is accurate and complete to the best of my knowledge and belief.

XII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.